



UNITED
NATIONS



Framework Convention
on Climate Change

Distr.
GENERAL

FCCC/CP/2001/6/Add.1
27 September 2001

Original: ENGLISH

CONFERENCE OF THE PARTIES
Seventh session
Marrakesh, 29 October - 9 November 2001
Item 2 (c) of the provisional agenda

PROVISIONAL AGENDA

Note by the Executive Secretary

Addendum

ANNOTATIONS TO THE PROVISIONAL AGENDA

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The annotations to the provisional agenda for the seventh session of the Conference of the Parties were completed after consultations with the Bureau of COP 6. Please note that the documents for each item of the provisional agenda are listed in the text box below the corresponding annotation where these are known at the time of writing.

1. Opening of the session

1. The Conference of the Parties (COP) to the United Nations Framework Convention on Climate Change (UNFCCC) will hold its seventh session from 29 October to 9 November 2001, at the Palais des Congrès, Marrakesh, Morocco. The session will open at 10 a.m. on Monday, 29 October 2001.

2. Pursuant to rule 26 of the draft rules of procedure being applied,¹ the session will be opened by the President of the Conference of the Parties at its sixth session (COP 6), His Excellency Mr. Jan Pronk, Minister of Housing, Spatial Planning and the Environment of the Netherlands.

(a) Statement by the President of the Conference at its sixth session

(b) Election of the President of the Conference at its seventh session

3. Draft rule 22 of the draft rules of procedure being applied, specifies that the office of the President of the Conference is subject to rotation among the five regional groups. The President of COP 6 will call for the election of His Excellency Mr. Mohamed El Yazghi, Ministre de l'Aménagement du Territoire, de l'Urbanisme, de l'Habitat et de l'Environnement (Morocco) as President of the Conference of the Parties at its seventh session (COP 7).

(c) Statement by the President

(d) Addresses of welcome

(e) Statement by the Executive Secretary

2. Organizational matters

(a) Status of ratification of the Convention and its Kyoto Protocol

4. **Background:** The Conference will have before it a status report on the ratification of the Convention, including the declarations made under Article 4, paragraph 2 (g). This report will confirm which States are Parties to the Convention and are therefore eligible to participate in decision-making. The number of Parties will total 186 during COP 7, including 185 States and one regional economic integration organization. The COP will also have before it in the same document a status report on the signature and ratification of the Kyoto Protocol. It has already received 36 instruments of ratification or accession.

5. **Action:** The COP will be invited to take note of the information contained in the document and invite Parties to expedite their ratification or accession to the Kyoto Protocol.²

¹ See document FCCC/CP/1996/2.

² No provision is made for statements under this sub-item. Relevant information may be communicated in statements made under other items or in writing to the secretariat.

The COP may also wish to invite Parties to provide to the secretariat any information regarding the expected timing of their ratification of the Kyoto Protocol.

FCCC/CP/2001/INF.3

*Status of ratification of the United Nations Framework
Convention on Climate Change and its Kyoto Protocol*

(b) Adoption of the rules of procedure

6. **Background:** Article 7, paragraph 2 (k), of the Convention specifies that the COP “shall agree upon and adopt, by consensus, rules of procedure ... for itself and for any subsidiary bodies”. After being unable to adopt its rules of procedure at previous sessions, the COP decided to apply the draft rules with the exception of draft rule 42 on voting.³ It also requested its successive Presidents to conduct consultations on the matter. The President of COP 6 informed the Conference that he intended to undertake further consultations with a view to achieving resolution on this matter.

7. **Action:** At the beginning of the session, the President of COP 6 will present an oral report on his consultations. In the absence of consensus, the COP may wish to decide to continue applying the rules of procedure contained in document FCCC/CP/1996/2. The COP may also wish to invite the President of COP 7 to undertake consultations to try to achieve adoption of the rules.

FCCC/CP/1996/2

Organizational matters. Adoption of the rules of procedure

(c) Adoption of the agenda

8. **Background:** Draft rule 9 specifies that “in agreement with the President, the secretariat shall draft the provisional agenda of each session” of the COP. In this context, the Executive Secretary, in agreement with the President of COP 6, has drafted the provisional agenda for COP 7, taking into account the views expressed by Parties during informal consultations conducted by the Chairman of the Subsidiary Body for Implementation (SBI) at its fourteenth session and by members of the Bureau of COP 6.

9. This provisional agenda is guided by the assumption that the Conference would wish to focus on the adoption of the package of decisions emanating from “The Bonn Agreements on the implementation of the Buenos Aires Plan of Action” of 25 July 2001 (decision 5/CP.6). Consequently, certain topics which would normally figure as distinct items on the provisional agenda of the Conference are treated on this occasion as part of that package under item 3.

10. It is also expected that the Conference will refer most other items to the subsidiary bodies for consideration and the formulation of recommendations for adoption by the Conference. Those items that are indicated with a single asterisk (*) are expected to be referred to the Subsidiary Body for Implementation (SBI), and the item that is indicated with two asterisks (**)

³ See documents FCCC/CP/1995/7, paragraph 10; FCCC/CP/1995/15, paragraph 15; FCCC/CP/1997/7, paragraph 21; FCCC/CP/1998/16, paragraph 11; FCCC/CP/1999/6, paragraph 14; and FCCC/CP/2000/5/Add.1, paragraph 30. The draft rules have been similarly applied, *mutatis mutandis*, to the subsidiary bodies.

is expected to be referred to the Subsidiary Body for Scientific and Technological Advice (SBSTA) (see paragraph 22 below).

11. Further consideration of the multilateral consultative process is not included but will be taken up at a future session in the light of the relevant outcomes of COP 7.

12. **Action:** The COP will be invited to consider and adopt the agenda for COP 7.

FCCC/CP/2001/6	<i>Provisional agenda</i>
FCCC/CP/2001/6/Add.1	<i>Provisional agenda. Addendum. Annotations to the provisional agenda</i>

(d) Election of officers other than the President

13. **Background:** Draft rule 22 provides that “at the commencement of the first meeting of each ordinary session, a President, seven Vice-Presidents, the Chairmen of the subsidiary bodies established by Articles 9 and 10 of the Convention, and a Rapporteur shall be elected from among the representatives of the Parties present at the session. They will serve as the Bureau of the session. Each of the five regional groups shall be represented by two Bureau members and one Bureau member shall represent the small island developing States. The offices of President and Rapporteur shall normally be subject to rotation among the five regional groups”. This rule further states that “no officer may serve on the Bureau for more than two consecutive terms of one year”.

14. The President of COP 7 will be elected at the first plenary meeting, on Monday, 29 October 2001. At COP 6 (part two), the President of COP 6 began consultations with regional group coordinators on the Bureau of COP 7, with the aim of advising the future President of COP 7 on the election of the other members of the Bureau. There will be a report on the outcome of these consultations. Further consultations will be held during the session.

15. Draft rule 27, paragraph 6, provides that “each subsidiary body shall elect its own Vice-Chairman and Rapporteur.” However, if there is agreement on the nominations for these officers of the subsidiary bodies, they may also be elected directly by the Conference in plenary session.

16. **Action:** The COP will be invited to elect the members of the Bureau of COP 7 other than the President after consultations have been completed. The Conference may wish to consider electing the Vice-Chairmen and Rapporteurs of the subsidiary bodies.

(e) Admission of organizations as observers

17. **Background:** Article 7, paragraph 6, of the Convention states, *inter alia*, that “any body or agency, whether national or international, governmental or non-governmental, which is qualified in matters covered by the Convention, and which has informed the secretariat of its wish to be represented at a session of the Conference of the Parties as an observer, may be so admitted unless at least one third of the Parties present object.” Following the established procedure, the secretariat will invite those intergovernmental and non-governmental

organizations accorded observer status at previous sessions of the Conference to attend COP 7. The procedure for admission to the Conference will apply only to new applicants for observer status. The Conference will have before it a document containing the list of organizations recommended by the Bureau for admission as observers.

18. **Action:** The COP will be invited to consider and approve this list of organizations seeking admission as observers.

FCCC/CP/2001/7	<i>Organizational matters. Admission of observers: intergovernmental and non-governmental organizations</i>
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(f) Organization of work, including the sessions of the subsidiary bodies

19. **Background:** The seventh session of the Conference of the Parties will meet in conjunction with the fifteenth sessions of the subsidiary bodies (see paragraph 23 below). The work of the session is expected to focus on the completion and adoption of the package of decisions giving effect to “The Bonn Agreements on the implementation of the Buenos Aires Plan of Action” of 25 July 2001 (decision 5/CP.6).

20. At its first plenary meeting, on the morning of Monday, 29 October, the Conference will take up item 1 of the provisional agenda, “Opening of the session”. The meeting will begin with a statement by the President of COP 6 to be followed by the election of the President of COP 7. Thereafter there will be statements by the President, representatives of the host country and the Executive Secretary.

21. The Conference is then expected to deal with a number of procedural and substantive matters, including the adoption of the agenda and the organization of work of the session. A tentative approach to the scheduling of meetings is contained in annex I below, and the list of documents in annex II below.

22. In adopting its agenda, the Conference is expected to refer a number of items to the subsidiary bodies for consideration and the formulation of recommendations for adoption by the Conference. Those items on the provisional agenda that are indicated with a single asterisk (*) are expected to be referred to the Subsidiary Body for Implementation (SBI), and the item that is indicated with two asterisks (**) is expected to be referred to the Subsidiary Body for Scientific and Technological Advice (SBSTA). Following consultations with the Bureau of COP 6, however, it is proposed that item 4 of the provisional agenda, “Input to the World Summit on Sustainable Development”, which was expected to be referred to the SBI for its consideration, be taken up in the plenary of the COP (see paragraphs 44 to 47 below).

23. The subsidiary bodies will be convened under their serving chairmen after the opening meeting of the Conference plenary. They will attempt to finalize as many issues as possible, including matters referred by the COP for recommendation, and develop draft decisions and conclusions for submission to the Conference before their sessions end on Tuesday, 6 November. No joint meetings of the subsidiary bodies are planned. The provisional agendas for the fifteenth sessions of the subsidiary bodies are contained in documents FCCC/SBI/2001/10 and FCCC/SBSTA/2001/3.

24. In order to complete work on the outstanding decisions under item 3 of the provisional agenda, the Conference will be invited to continue the relevant negotiating groups used at the second part of the sixth session, under the same co-chairmen (see FCCC/CP/2001/5, paras. 27 and 35). Most work is required on the draft decisions on the “Work programme on mechanisms”, “Procedures and mechanisms relating to compliance under the Kyoto Protocol” and “National systems, adjustments and guidelines under Articles 5, 7 and 8 of the Kyoto Protocol”. The negotiating groups would be mandated to recommend draft decisions to the COP for adoption (see paragraphs 39 to 43 below).

25. The high-level segment of the Conference will be held from Wednesday, 7 November to Friday, 9 November. It will involve the resolution of any outstanding issues, under the guidance of the President. His Majesty Mohammed VI, King of Morocco will address the high-level segment. Ministers and senior officials will deliver short policy statements on Wednesday, 7 November.

26. The scheduling of meetings during the session is based on the availability of conference-servicing facilities during normal working hours. Given the heavy workload of the session, provision has been made for holding two simultaneous meetings, with full interpretation facilities, in the mornings and afternoons of the entire period when the subsidiary bodies and the negotiating groups are meeting, including Saturday, 3 November. It is also anticipated that either formal or informal meetings will be held every evening.

27. **Action:** The Conference will be invited to agree upon the organization of the session, including the proposed schedule of meetings, and to encourage the President of the Conference to conclude all negotiations by the close of business on Thursday, 8 November. It will also be necessary to decide on the time limit proposed for the statements under item 12 of the provisional agenda (see paragraphs 68 to 71 below).

<i>FCCC/CP/2001/6</i>	<i>Provisional agenda. Note by the Executive Secretary</i>
<i>FCCC/CP/2001/6/Add.1</i>	<i>Provisional agenda. Note by the Executive Secretary. Addendum. Annotations to the Provisional agenda</i>
<i>FCCC/SBI/2001/10</i>	<i>Provisional agenda and annotations</i>
<i>FCCC/SBSTA/2001/3</i>	<i>Provisional agenda and annotations</i>

(g) Date and venue of the eighth session of the Conference of the Parties

28. **Background:** Draft rule 3 specifies that “the sessions of the Conference of the Parties shall take place at the seat of the secretariat, unless the Conference of the Parties decides otherwise or other appropriate arrangements are made by the secretariat in consultation with the Parties.” Draft rule 4, paragraph 2, states that “at each ordinary session, the Conference of the Parties shall decide on the date and duration of the next ordinary session.” A decision on the date and venue of COP 8 is therefore required at COP 7. The Conference has already agreed on

the dates for the second sessional period in 2002, 28 October to 8 November 2002, which will be the dates of COP 8.⁴

29. At the time of writing, no offer has been received by the secretariat from a Party wishing to host COP 8. Parties wishing to host COP 8 are invited to submit their offers as soon as possible.

30. **Action:** The COP will be invited to refer this item to the SBI for its consideration and recommendation of a decision on the date and venue of COP 8 for adoption by the Conference.

(h) Calendar of meetings of Convention bodies, 2005 – 2007

31. **Background:** At the first part of its sixth session the COP adopted the calendar of meetings of Convention bodies for 2000 - 2004.⁵

32. **Action:** The COP will be invited to refer this item to the SBI for its consideration and recommendation of a decision on the calendar of meetings of Convention bodies, 2005 to 2007, for adoption by the Conference.

(i) Adoption of the report on credentials

33. **Background:** Draft rule 19 specifies that the credentials of representatives of Parties, as well as the names of alternate representatives and advisers, shall be submitted not later than twenty-four hours after the opening of the session. Any later change in the composition of the delegation shall also be submitted to the secretariat. The credentials shall be issued either by the head of State or Government or by the Minister of Foreign Affairs or, in the case of a regional economic integration organization, by the competent authority of that organization. In accordance with draft rule 20, the Bureau will be required to examine and report to the Conference on these credentials.

34. **Action:** Based on the report of the Bureau, the COP will be invited to approve the credentials of the representatives of Parties attending the session. Representatives will be entitled to participate provisionally in the session, pending this decision.

FCCC/CP/2001/9

<i>Adoption of the report on credentials</i>
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3. Implementation of the Buenos Aires Plan of Action: adoption of the decisions giving effect to the Bonn Agreements

(a) Completed decisions forwarded for adoption

35. **Background:** The Conference will have before it the following decisions, for which negotiations have been completed and consensus reached at COP 6 (part two) and which have been forwarded by the Conference to COP 7 for adoption (see FCCC/CP/2001/5/Add.1):

⁴ FCCC/CP/1999/6, paragraph 31.

⁵ FCCC/CP/2000/5/Add.1, paragraph 51.

- (a) Capacity-building in developing countries (non-Annex I Parties);
- (b) Capacity-building in countries with economies in transition;
- (c) Development and transfer of technologies (decisions 4/CP.4 and 9/CP.5);
- (d) Implementation of Article 4, paragraphs 8 and 9 of the Convention (decision 3/CP.3, and Article 2, paragraph 3, and Article 3, paragraph 14, of the Kyoto Protocol);
- (e) Additional guidance to an operating entity of the financial mechanism;
- (f) Funding under the Convention;
- (g) Activities implemented jointly under the pilot phase (decisions 6/CP.4 and 13/CP.5);
- (h) Matters relating to Article 3, paragraph 14, of the Kyoto Protocol;
- (i) Funding under the Kyoto Protocol; and
- (j) Impact of single projects on emissions in the commitment period (decision 16/CP.4).

36. The secretariat will present to the COP, for its consideration, the results of a technical and legal review of these decisions. The review was undertaken after consulting with the Bureau. The main point addressed is that, in a number of draft decisions originally prepared for adoption in November 2000, the scheduling of certain follow-up activities or the deadlines set for their completion have been overtaken by the delay in the intergovernmental process. These schedules and deadlines should be modified in consequence, to account for the fact that these decisions are now due to be adopted in November 2001. A number of other technical and legal points will be brought forward under the authority of the respective chairmen responsible for the texts in question.

37. A letter on behalf of the group of countries of Central Asia, Caucasus and Moldova (CAC&M) proposes changes in the wording of certain decision in this set to take account of the position of those countries (see paragraphs 72 to 75 below). In this context, the CAC&M group of countries have also raised the issue of the participation of Eastern European non-Annex I Parties in the expert group on technology transfer.

38. **Action:** The COP will be invited to adopt the decisions forwarded by COP 6 (part two) incorporating the results of the technical and legal review, as appropriate.

FCCC/CP/2001/5/Add.1

Report of the Conference of the Parties on the second part of its sixth session, held at Bonn from 16 to 27 July 2001. Addendum. Part Three: Decisions on which the Conference of the Parties noted that negotiations had been completed and consensus reached at the second part of the sixth session and which the Conference decided to forward to its seventh session for adoption

- (b) **Draft decisions forwarded for elaboration, completion and adoption**
- (i) **National systems, adjustments and guidelines under Articles 5, 7 and 8 of the Kyoto Protocol**
 - (ii) **Matters relating to land use, land-use change and forestry**
 - (iii) **Work programme on mechanisms (decisions 7/CP.4 and 14/CP.5)**
 - (iv) **Procedures and mechanisms relating to compliance under the Kyoto Protocol**
 - (v) **“Good practices” in policies and measures**

39. **Background:** The Conference will have before it the draft decisions for the above-mentioned agenda items, for which progress was noted at COP 6 (part two) and which have been forwarded by the Conference to COP 7 for elaboration, completion and adoption (see FCCC/CP/2001/5). The documents before the Conference are listed below.

40. In relation to sub-item (i), the outcome of the inter-sessional workshop on issues related to Articles 5, 7 and 8 of the Kyoto Protocol, to be held in Bonn, from 4 to 6 October 2001, will be made available to the Conference for its consideration.

41. In relation to sub-item (v), the outcome of the inter-sessional expert workshop on “good practices” in policies and measures, to be held in Copenhagen from 8 to 10 October 2001, will be made available to the Conference for its consideration.

42. The Conference will also be expected to elect the members of the executive board of the clean development mechanism (CDM), to facilitate the prompt start of the CDM. A notification of the forthcoming election will be sent to Parties, inviting the submission of nominations. The President will promote the necessary consultations within regional groups and the groups of Parties listed and not listed in Annex I to the Convention, so that the election can take place after the adoption of the decision on the CDM and before the closure of the session.

43. **Action:** The COP will be invited to elaborate, complete and adopt the draft decisions forwarded by COP 6 (part two). The COP will also be invited to elect the members of the executive board of the CDM.

<i>FCCC/CP/2001/5/Add.2</i>	<i>Report of the Conference of the Parties on the second part of its sixth session, held at Bonn from 16 to 27 July 2001. Addendum. Part Four: Draft decisions on which progress was noted by the Conference of the Parties at the second part of its sixth session and which the Conference decided to forward to its seventh session for elaboration, completion and adoption</i>
<i>FCCC/CP/2000/5 and Add.3, (vols. III – V)</i>	<i>Report of the Conference of the Parties on the first part of its sixth session, held at The Hague from 13 to 25 November 2000</i>
<i>FCCC/CP/2001/2/Add.2, Add. 4 and Add. 5</i>	<i>Review of the implementation of commitments and of other provisions of the Convention. Preparations for the first session of the Conference of the Parties serving as the meeting of the parties to the Kyoto Protocol (decision 8/CP.4). Consolidated negotiating text proposed by the President.</i>

4. Input to the World Summit on Sustainable Development

44. **Background:** The United Nations, in General Assembly resolution 55/199, invited the UNFCCC to participate fully in the 10-year review of progress achieved in the implementation of Agenda 21, including the preparation of a report for submission to the Commission on Sustainable Development at its tenth session and the World Summit on Sustainable Development, to be held at Johannesburg in September 2002. In its decision 55/443, the General Assembly invited COP 7 to contribute to the 10-year review of the implementation of Agenda 21 and the Programme for the Further Implementation of Agenda 21, and requested the Executive Secretary of the UNFCCC to report to the Preparatory Committee for the World Summit on Sustainable Development.

45. The SBI, at its twelfth session, requested the secretariat to prepare elements of a draft input on the UNFCCC process to the World Summit on Sustainable Development for consideration at its fourteenth session, with a view to recommending a draft decision for adoption by COP 7. At its fourteenth session, the SBI Chairman recommended that this matter be taken up at the fifteenth session of the SBI.

46. Following a discussion in the Bureau of COP 6, it is proposed that this item be taken up in the plenary of the COP rather than the SBI.

47. **Action:** The COP will be invited to consider this item and adopt a decision on input to the World Summit on Sustainable Development.

<i>FCCC/CP/2001/10</i>	<i>Input to the World Summit on Sustainable Development</i>
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5. Third Assessment Report of the Intergovernmental Panel on Climate Change

48. **Background:** The Third Assessment Report of the Intergovernmental Panel on Climate Change (IPCC), entitled "Climate Change 2001", was issued in May 2001. This report will be considered by the SBSTA at its fifteenth session.

49. **Action:** The COP will be invited to refer this item to the SBSTA for its consideration, and to urge the SBSTA to thoroughly examine the information in the report with a view to identifying the implications of the report for the further work of the COP and its subsidiary bodies and to report any such findings or recommendations to the COP.

6. Report of the Global Environment Facility to the Conference of the Parties

50. **Background:** The Memorandum of Understanding between the COP and the Council of the Global Environment Facility (GEF), annexed to decision 12/CP.2⁶, provides, *inter alia*, that the GEF will make available annual reports which should include specific information on how it has applied the guidance and decisions of the COP in its work related to the Convention.

51. **Action:** The COP will be invited to refer this item to the SBI for its consideration and recommendation of any draft decisions on the report of the GEF for adoption by the Conference.

7. Second review of the adequacy of Article 4, paragraph 2 (a) and (b), of the Convention

52. **Background:** Article 4, paragraph 2 (d), provides that a second review of the adequacy of Article 4, paragraph 2 (a) and (b), shall take place not later than 31 December 1998. At COP 4, it "proved impossible to reach any agreed conclusions or decisions" on this matter.⁷ In accordance with draft rule 16⁸ the item was then placed on the provisional agenda of COP 5. During the consideration of the provisional agenda of COP 5, the Group of 77 and China proposed amending the item to read as follows: "Review of the adequacy of implementation of Article 4, paragraph 2 (a) and (b), of the Convention". There was no agreement on that proposal and the President of COP 5 expressed his intention to undertake further consultations with a view to reaching a consensus. The Conference accordingly adopted the agenda of the session, with the exception of the item in question, which was held in abeyance.

53. Following the inability of the Parties at COP 5 to reach conclusion on this matter, and following rule 16 and rule 10 (c) of the draft rules of procedure being applied, an item "Second review of the adequacy of Article 4, paragraph 2 (a) and (b), of the Convention" was included in the provisional agenda for the sixth session. Attached to this item was a footnote reflecting the amendment proposed by the Group of 77 and China at COP 5.

⁶ See document FCCC/CP/1996/15/Add.1.

⁷ FCCC/CP/1998/16, paragraph 64.

⁸ This rule states that "any item of the agenda of an ordinary session, consideration of which has not been completed at the session, shall be included automatically in the agenda of the next ordinary session, unless otherwise decided by the Conference of the Parties."

54. At the first part of its sixth session, the Conference decided to hold this item in abeyance and include it in the provisional agenda for its seventh session. The President of COP 6 will report to the Conference on his consideration of possible ways of achieving consensus on the issues covered under this agenda item.

55. **Action:** The COP may wish to address this matter in the light of the above-mentioned report. The President may conduct informal consultations with a view to determining how best to address this issue.

8. Proposals to amend the lists in Annexes I and II to the Convention

(a) Proposal to amend the lists in Annexes I and II to the Convention by removing the name of Turkey: review of information and possible decisions under Article 4, paragraph 2 (f)

56. **Background:** At its fifth session, the COP recalled the proposals made by Pakistan and Azerbaijan at its third session for the deletion of the name of Turkey from the lists included in Annexes I and II to the Convention. At the first part of its sixth session, the President of COP 6 informed the Conference that the Minister of Environment of Turkey, in his statement to the 4th plenary meeting, had made a new proposal on this issue.⁹ On the proposal of the President of COP 6, the Conference agreed that the new proposal from Turkey should be referred to the SBI for consideration at its next session, with a view to making a recommendation to COP 7 for definitive action.

57. **Action:** The COP will be invited to refer this item to the SBI for its consideration and recommendation of definitive action on this matter for adoption by the Conference.

FCCC/CP/2001/11	<i>Proposal to amend the list in Annexes I and II to the Convention. Proposal to amend the list in Annexes I and II to the Convention by removing the name of Turkey: review of information and possible decisions under Article 4, paragraph 2 (f)</i>
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(b) Amendment proposed by Kazakhstan: to add Kazakhstan to the list in Annex I

58. **Background:** Article 15, paragraph 1, provides that “any Party may propose amendments to the Convention.” Article 15, paragraph 2, provides that “amendments to the Convention shall be adopted at an ordinary session of the Conference of the Parties. The text of any proposed amendment to the Convention shall be communicated to the Parties by the secretariat at least six months before the meeting at which it is proposed for adoption. The secretariat shall also communicate proposed amendments to the signatories to the Convention and, for information, to the Depository.” Article 16 relates, *inter alia*, to the amendment of annexes by application of the procedures set out in Article 15.

59. In accordance with these provisions, Kazakhstan submitted a note dated 24 April 1999 proposing the inclusion of its name in the list of Parties included in Annex I to the Convention.

⁹ FCCC/CP/2001/5/Add.1, paragraphs 84-85.

This proposal was communicated to all Parties, signatories, and, for information, to the Depository, in a note verbale dated 3 May 1999. The proposal has also been made available in all six official languages of the United Nations.

60. The COP at its fifth session considered this proposal and agreed to consider the amendment by Kazakhstan at its sixth session, with a view to taking action thereon. In a note verbale dated 13 June 2000, Kazakhstan requested that its proposed amendment be withdrawn from the provisional agenda of COP 6. This item has now been included in the provisional agenda of COP 7 for consideration by the Conference at the request of Kazakhstan.

61. **Action:** The COP will be invited to refer this item to the SBI for its consideration and recommendation of a decision on the proposed amendment by Kazakhstan for adoption by the Conference.

FCCC/CP/1999/2

Amendment to Annex I to the Convention. Proposal from the Republic of Kazakhstan to amend Annex I to the Convention

9. Matters relating to national communications under the Convention

(a) **National communications from Parties included in Annex I to the Convention**

(b) **National communications from Parties not included in Annex I to the Convention**

62. **Background:** Information on the issues concerning these sub-items can be found in the provisional agenda and annotations of the fifteenth session of the SBI, document FCCC/SBI/2001/10.

63. **Action:** The COP will be invited to consider draft decisions or conclusions recommended either by the SBI or the SBSTA, or by both subsidiary bodies jointly.

10. Programme budget for the biennium 2002-2003

64. **Background:** At its fourteenth session, the SBI considered the programme budget for the biennium 2002-2003 proposed by the Executive Secretary and agreed to recommend to the COP a total budget of US\$ 32,837,100 including contingencies. It also agreed to consider, at its fifteenth session, a revised programme budget including a staffing table, with a view to recommending a final budget for adoption by the Conference at its seventh session.

65. **Action:** The COP will be invited to adopt the programme budget for the biennium 2002 - 2003, recommended by the SBI.

11. Reports of the subsidiary bodies and decisions and conclusions arising therefrom

(a) Report of the Subsidiary Body for Scientific and Technological Advice

(b) Report of the Subsidiary Body for Implementation

66. **Background:** Article 7, paragraph 2 (j), of the Convention requires the Conference to review reports submitted by its subsidiary bodies and provide guidance to them. The COP will have before it the reports of the Subsidiary Body for Scientific and Technological Advice and the Subsidiary Body for Implementation on their fourteenth sessions, held in July, and fifteenth sessions, to be held in October - November 2001.

67. **Action:** The COP will be invited to take note of these reports and to consider any draft decisions recommended for adoption.

<i>FCCC/SBSTA/2001/2</i>	<i>Report of the Subsidiary Body for Scientific and Technological Advice on its fourteenth session, held at Bonn from 24 to 27 July 2001</i>
<i>FCCC/SBI/2001/9</i>	<i>Report of the Subsidiary Body for Implementation on its fourteenth session, held at Bonn from 24 to 27 July 2001</i>

12. Statements

(a) Statements by ministers and other heads of delegation of Parties

(b) Statements by Observer States

(c) Statements by intergovernmental organizations

(d) Statements by non-governmental organizations

68. **Background:** Brief policy statements by ministers and other heads of delegation of Parties will be heard during the Conference. Full texts of the official statements will be circulated, if a sufficient number of copies are provided to the secretariat in the course of the session.

69. Given the number of Parties and the limited amount of time available for statements, it will be necessary for the Conference to limit the duration of each statement. The recommended time limit is three to four minutes. Statements on behalf of groups of Parties, where the other members of the group do not speak, are strongly encouraged; additional time will be provided for group statements.

70. The list of speakers will be open from Monday, 18 September to Friday, 19 October 2001. Further information, including information on the speakers' list, is available in the notification to Parties, including the corresponding form (also available on the UNFCCC web site). Inquiries regarding this list may be sent to the Office of the Secretary of the Conference at the UNFCCC secretariat, telephone number (49-228) 815-1520 or (49-228) 815-1426; fax number (49-228) 815-1999; e-mail: secretariat@unfccc.int.

71. **Action:** The representatives of intergovernmental and non-governmental organizations will be invited to make statements to the COP. The recommended time limit for all such statements is three to four minutes.

13. Other matters

72. Any other matters for the attention of the COP will be taken up under this item. One such matter pertains to the situation of the group of countries of Central Asia, Caucasus and Moldova (CAC&M) and other non-Annex I Parties not considered to be developing countries.

73. **Background:** In a letter to the Executive Secretary, dated 27 July 2001, the CAC&M group of countries sought clarification on two issues: a clear definition of the term “developing countries” or a reference to relevant legal texts containing such definition, and the status of the CAC&M countries in the context of decisions of the Convention and the Kyoto Protocol, including those prepared at the resumed COP 6.

74. If difficulties are encountered in providing such clarification in a timely manner, they suggest a decision to be adopted by the COP at its eighth session clarifying their status. They have also proposed that pending formal resolution of the issue, the words “developing countries” should be substituted with “developing countries and other Parties not included in Annex I” throughout the text of the COP 6 (part two) decisions.

75. **Action:** The COP will be invited to consider this matter and determine any appropriate action.

FCCC/CP/2001/12

The situation of non-Annex I Parties not considered to be developing countries

14. Conclusion of the session

(a) Adoption of the report of the Conference of the Parties at its seventh session

76. **Background:** A draft report on the work of the session will be prepared for adoption by the COP at the end of the session.

77. **Action:** In accordance with established practice, the COP will be invited to adopt the draft report and authorize the Rapporteur to complete the report after the session, under the guidance of the President and with the assistance of the secretariat.

(b) Closure of the session

78. The President will declare the session closed.

Annex I

OVERVIEW OF THE SESSIONAL PERIOD

Monday, 29 October	Tuesday, 30 October	Wednesday, 31 October	Thursday, 1 November	Friday, 2 November	Saturday, 3 November
Opening of seventh session of the Conference of the Parties		Fifteenth sessions of the subsidiary bodies			
		Completion of decisions transmitted from COP 6			
Opening of the sessions of the subsidiary bodies (time permitting)					
Monday, 5 November	Tuesday, 6 November	Wednesday, 7 November	Thursday, 8 November	Friday, 9 November	
Fifteenth sessions of the subsidiary bodies		Opening of high-level segment	High-level segment continues with negotiations and consultations	COP 7 concludes: Adoption of decisions and conclusions	
Completion of decisions transmitted from COP 6					

Annex II

LIST OF DOCUMENTS

Documents prepared for the Conference of the Parties

FCCC/CP/2001/6	Provisional agenda. Note by the Executive Secretary
FCCC/CP/2001/6/Add.1	Provisional agenda. Note by the Executive Secretary. Addendum. Annotations to the provisional agenda
FCCC/CP/2001/7	Organizational matters. Admission of observers: intergovernmental and non-governmental organizations
FCCC/CP/2001/8	Report of the Global Environment Facility to the Conference of the Parties
FCCC/CP/2001/9	Adoption of the report on credentials
FCCC/CP/2001/10	Input to the World Summit on Sustainable Development
FCCC/CP/2001/11	Proposal to amend the list in Annexes I and II to the Convention. Proposal to amend the list in Annexes I and II to the Convention by removing the name of Turkey: review of information and possible decisions under Article 4, paragraph 2 (f).
FCCC/CP/2001/12	The situation of non-Annex I Parties not considered to be developing countries
FCCC/CP/2001/INF.3	Status of ratification of the United Nations Framework Convention on Climate Change and its Kyoto Protocol
FCCC/CP/2001/5	Report of the Conference of the Parties on the second part of its sixth session, held at Bonn from 16 to 27 July 2001. Part One: Proceedings
FCCC/CP/2001/5/Add.1	Report of the Conference of the Parties on the second part of its sixth session, held at Bonn from 16 to 27 July 2001. Addendum. Part Three: Decisions on which the Conference noted that negotiations had been completed and consensus reached at the second part of the sixth session and which the Conference decided to forward to its seventh session for adoption

FCCC/CP/2001/5Add.2	Report of the Conference of the Parties on the second part of its sixth session, held at Bonn from 16 to 27 July 2001. Addendum. Part Four: Draft decisions on which progress was noted by the Conference of the Parties at the second part of its sixth session and which the Conference decided to forward to its seventh session for elaboration, completion and adoption
FCCC/CP/2001/MISC.4	The Bonn Agreements on the implementation of the Buenos Aires Plan of Action. Statements made in connection with the approval of decision 5/CP.6
FCCC/SBI/2001/10	Provisional agenda and annotations
FCCC/SBSTA/2001/3	Provisional agenda and annotations

Other documents for the Conference of the Parties

FCCC/CP/2000/5	Report of the Conference of the Parties on the first part of its sixth session, held at The Hague from 13 to 25 November 2000
FCCC/CP/2000/5/Add.1	Report of the Conference of the Parties on the first part of its sixth session, held at The Hague from 13 to 25 November 2000. Part One: Proceedings
FCCC/CP/2000/5/Add.2	Report of the Conference of the Parties on the first part of its sixth session, held at The Hague from 13 to 25 November 2000. Addendum. Part Two: Action taken by the Conference of the parties at the first part of its sixth session
FCCC/CP/2000/5/Add.3 (vols. I - V)	Report of the Conference of the Parties on the first part of its sixth session, held at The Hague from 13 to 25 November 2000. Addendum. Part Three: Texts forwarded to the resumed sixth session by the Conference of the Parties at the first part of its sixth session
FCCC/CP/2001/2/Rev.1 and Add.1 - 2 and Add.3/Rev.1 and Add. 4 - 6	Review of the implementation of commitments and of other provisions of the Convention. Preparations for the first session of the Conference of the Parties serving as the meeting of the Parties to the Kyoto Protocol (decision 8/CP.4). Consolidated negotiating text proposed by the President.

FCCC/CP/1999/2	Amendment to Annex I to the Convention. Proposal from the Republic of Kazakhstan to amend Annex I to the Convention
FCCC/CP/1996/2	Organizational matters. Adoption of the rules of procedure
FCCC/CP/1999/6	Report of the Conference of the Parties on its fifth session, held at Bonn from 25 October to 5 November 1999. Part One: Proceedings
FCCC/CP/1999/6/Add.1	Report of the Conference of the Parties on its fifth session, held at Bonn from 25 October to 5 November 1999. Part Two: Action taken by the Conference of the Parties at its fifth session
FCCC/CP/1998/16	Report of the Conference of the Parties on its fourth session, held at Buenos Aires from 2 to 14 November 1998. Part One: Proceedings
FCCC/CP/1998/16/Add.1	Report of the Conference of the Parties on its fourth session, held at Buenos Aires from 2 to 14 November 1998. Part Two: Action taken by the Conference of the Parties at its fourth session
FCCC/CP/1997/7	Report of the Conference of the Parties on its third session, held at Kyoto from 1 to 11 December 1997. Part One: Proceedings
FCCC/CP/1997/7/Add.1	Report of the Conference of the Parties on its third session, held at Kyoto from 1 to 11 December 1997. Part Two: Action taken by the Conference of the Parties at its third session

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